

Partnership Memorandum of Understanding

Project: LUMA Smart Home — smart-home integration and service company, Southwest Florida
Document: trial-period memorandum — a statement of intent, not a definitive operating agreement
Effective date: _____, 2026 · **Trial period ends:** 31 December 2026

1. Parties

Partner A: _____, residing in _____, FL.
Partner B: Anatoly Shilov, residing in _____, _____.
Together the "Partners". Contact details are in Annex D.

2. Purpose and territory

The Partners join efforts to launch and test a residential technology business (the "Project") under the **LUMA Smart Home** brand: design, supply, installation, programming, commissioning and service of lighting control, motorized shading, networking, surveillance, audio/video and home automation, plus recurring **LUMA Care** memberships.
Primary territory: **Sarasota County, Florida**; adjacent: Manatee, Charlotte, DeSoto, Lee, Collier. Work outside this territory needs both Partners' agreement. Target client: owners of homes and condominiums from \$_____ in value, and the builders, architects and designers serving them.

3. Trial period and reviews

This Memorandum covers a deliberate trial from the effective date **through 31 December 2026**, to test demand, unit economics and the working relationship **at minimal cash risk** — the main contribution of both Partners is time.
Rhythm: a weekly operating call of _____ minutes on _____, a written monthly review by the _____ of each month, and a final review by **15 December 2026**. At that review the Partners choose one of three outcomes: (a) sign a definitive Operating Agreement of a Florida LLC; (b) extend the trial by written addendum; (c) end the cooperation under §17.

4. Participation shares

Participant	Share	Applies to
Partner A	_____ %	Profit, losses (§8), membership interest in the LLC
Partner B	_____ %	Same
Reserve pool — future partner or key hire	_____ %	Unissued; allocated only under §13

During the trial these shares are **provisional**: at the final review they are confirmed, or adjusted by written agreement, against the contribution ledger in Annex B (hours, cash, results). If the Partners cannot agree on an adjustment, the shares above stand. Shares are not transferable during the trial without the other Partner's written consent.

5. Areas of responsibility

Each area has one accountable **Lead**, who decides day-to-day matters within budget and reports at the weekly call. Support assists but does not own the outcome. Task-level detail, escalation and internal rates are in Annex A.

#	Area	Lead	Support
1	Sales — direct clients, quoting, closing	_____	_____
2	Trade channel — builders, architects, designers, realtors	_____	_____
3	Design and engineering — system design, price book, programming	_____	_____
4	Field delivery — subcontractors, scheduling, QA, warranty	_____	_____
5	Procurement — dealer accounts, purchase orders, stock	_____	_____
6	Marketing — website, SEO, local search, content, photo	_____	_____
7	Finance and admin — bookkeeping, invoicing, receivables, tax, insurance	_____	_____
8	Licensing and compliance — licensing route, permits, subcontractor files	_____	_____
9	Client care — support desk, service visits, LUMA Care renewals	_____	_____

6. Time commitment

Partner A: _____ **hours per week**. Partner B: _____ **hours per week**. Core overlap hours: _____. Each Partner replies to the other within _____ **business hours** and to a new client enquiry within _____ **hours**. Absence over _____ days is announced _____ days ahead with handover. Hours are logged weekly per Annex B — that log is the evidence base for §4.

7. Money at the start (deliberately minimal)

Each Partner contributes up to \$_____ to a common working fund ("Seed Cap"), in tranches as needed, and is not obliged to contribute more during the trial. Any single expense above \$_____, or a new recurring subscription above \$_____ **per month**, needs written approval of both (email or messenger suffices).
Project hardware, freight and subcontract labour are funded from **client deposits, not partner capital**: standard terms are _____ % on signature before equipment is ordered, _____ % at rough-in, balance at commissioning. Personal costs (vehicle, phone, home office, personal tools) are not reimbursable unless listed in Annex D.5.

8. Losses and additional funding

Losses are shared per §4, but each Partner's **cash obligation during the trial is capped at the Seed Cap**. Neither Partner guarantees the other's obligations or may create debt binding on the other (§12).
If more cash is needed: (a) both contribute pro rata; or (b) one contributes alone and it is recorded as a **partner loan**, repaid before any distribution with _____ % simple interest per annum, or — at the funding Partner's written election at the time — converted into share at \$_____ **per 1 %** (Annex B.4); or (c) neither contributes and the plan is scaled down.
Bad debt, warranty rework and re-doing defective work are **Project costs** shared per §4, except where caused by a Partner's gross negligence or unapproved deviation from scope, which is charged to that Partner's contribution account.

9. Revenue, profit and distributions

Cash is applied in this order: (1) **direct project costs** — equipment, freight, subcontractors, permits, sales tax; (2) **sales commission** — _____ % of project gross profit to the Partner who sourced and closed the deal, paid before the profit split; (3) **operating expenses**; (4) **cash reserve**, until it reaches \$_____ (about _____ months of operating expenses); (5) **profit**, distributed per §4, _____ (monthly / quarterly).
During the trial the Partners intend to reinvest at least _____ % of profit. No salaries or owner draws unless both agree in writing; a Partner doing billable field or programming work is paid \$_____ **per hour** as a direct project cost at the rates in Annex A.3, separately from profit share. Every project is quoted from the shared price book at a **minimum gross margin of** _____ %; going below that needs both Partners' consent.

10. Goals for the trial

To 31 December 2026: revenue \$_____; signed projects _____; average project value \$_____; realized gross margin _____ %; LUMA Care memberships _____; qualified leads per month _____; year-end pipeline \$_____; signed trade partners _____; photographed reference projects _____.
Weighted equally in the go / no-go decision: commitments to each other are kept, communication holds under pressure, and both still want to sign. The 30/60/90-day plan is in Annex C.

11. Go-to-market and lead rules

Channel priority (1 = first): builders and remodelers ____ ; designers and architects ____ ; realtors and property managers ____ ; inbound web, SEO, Google Business Profile ____ ; client referrals ____ ; manufacturer lead programs ____ ; personal and community network ____ .

Rules from day one: every lead is entered in the shared CRM within ____ hours with its source; whoever logs it first owns the relationship unless reassigned by agreement; **no Project client, lead or vendor is worked outside the shared pipeline** (§15); one price book and one set of templates; the client always has a single point of contact.

12. Decisions and reserved matters

Day-to-day decisions belong to the area Lead (§5). **Written consent of both Partners** is required for: admitting a third partner, investor or equity hire; any borrowing, lease, personal guarantee or client financing; any expense above \$____ or contract with liability above \$____; the first full-time hire; pricing below the \$9 margin floor; changes to brand, entity name, domain or website ownership; any profit distribution; entering territory outside §2; manufacturer exclusivity.

Deadlock: seven days' cool-off, then one further meeting with a written agenda, then a mutually chosen mediator in Sarasota County, then §17 — and no unilateral action on a reserved matter while a deadlock is open.

13. Admitting a third partner or investor

Only by **unanimous written consent**, documented in an addendum. Default terms: the new share comes first from the reserve pool in §4, then from equal relative dilution of both Partners; the entrant brings defined cash and/or a role with measurable deliverables; equity vests over ____ months with a ____-month cliff and reverts if the role is not performed; the entry price is the greater of Annex B.5 or an agreed valuation; the entrant signs the same terms as §15. The same applies to equity hires, revenue-share referral partners and outside investors. Neither Partner may promise equity, revenue share or a title to anyone before that consent exists.

14. Operational improvements and growth

Everything built during the trial — checklists, CRM setup, price book, proposal and contract templates, commissioning procedures, training material, supplier terms — is a **Project asset, not the author's private property**, and must be documented well enough for either Partner to run it. The Partners hold an improvement review every ____ (month / quarter): what to standardize, automate, outsource or hire for, and which metric each change should move. A documented improvement with a measured effect may be credited to its author in Annex B.6. Later growth steps (second crew, showroom, commercial work, more counties, own licence) are planned but not committed here.

15. Confidentiality, exclusivity, non-circumvention (binding)

During the trial and for ____ months afterwards, each Partner agrees that within the territory of §2 they will not pursue smart-home integration or service business outside the Project — directly, through another entity, as an employee or as a contractor to a competitor — without the other's written consent; will not solicit, quote or serve any Project client, lead, vendor, distributor or subcontractor introduced through the Project other than through the Project; will not solicit Project personnel; and will keep confidential all client data, pricing, vendor terms, project documentation and this Memorandum. Pre-existing activities disclosed in Annex D.2 are excluded.

16. Brand, intellectual property and data (binding)

The **LUMA Smart Home** name and marks, the domain, the website with its code and content, photography, price book, templates, CRM records and client data are Project assets, held for the Project and assigned to the LLC on formation. Intellectual property owned by a Partner before the effective date stays theirs and is licensed to the Project free of charge while the cooperation lasts (Annex D.3). If the trial ends, Project assets stay with the Partner designated in Annex D.4 and the other is compensated for their §4 share of agreed value; client data is then used only as the client consents and the law allows.

17. Ending the trial

Either Partner may end the cooperation on ____ days' written notice; it also ends on 31 December 2026 unless extended. Then: projects in progress are completed, or transferred with the client's written consent, at the client's least inconvenience; receivables are collected and payables settled; the working fund, tools and equipment are divided per §4 after all Project obligations; the departing Partner stays bound by §15 and §16; a buy-out of a share is valued per Annex B.5. Protecting the client takes precedence over the Partners' claims against each other.

18. Legal form, licensing and compliance

The Partners intend to operate through a member-managed Florida LLC (working name **LUMA Home Systems LLC**) with a written Operating Agreement, EIN, business bank account, bookkeeping from day one, general liability insurance (plus workers' comp where required), sales-tax registration, and written subcontractor agreements with W-9s and insurance certificates.

Until the entity, insurance and the applicable **Florida licensing route** are in place, no Partner signs client contracts in the Project's name, and any work requiring a low-voltage, alarm-system or electrical licence is performed only by a licensed contractor of record engaged in writing. Choosing that route — a licence in a Partner's name, or working through a licensed partner contractor — is an Annex C.1 milestone with an owner and a date. No Partner may hold themselves out as licensed before the Project is. Each Partner is responsible for their own taxes and work authorization.

19. Status of this document; governing law; language

Except for §15, §16 and this §19, this Memorandum is a **statement of intent**: it is not intended to create a binding contract, a general partnership, a joint venture, employment, or authority for either Partner to bind the other. It is not legal, tax, accounting or insurance advice; the definitive Operating Agreement will be reviewed by a Florida attorney and a CPA and will supersede this Memorandum.

Governing law: the State of Florida; venue Sarasota County. Executed in English and Russian; both texts carry the same meaning and, if they differ, the _____ text prevails.

20. Signatures

Partner A	Partner B
Name: _____	Name: Anatoly Shilov
Signature: _____	Signature: _____
Date: _____	Date: _____

Annexes forming part of this Memorandum: **A** responsibility matrix and rates · **B** contribution ledger and valuation · **C** 90-day plan and KPIs · **D** disclosures and asset register.

Annex A — Responsibility matrix, escalation and rates

A.1 Task-level allocation. For each area of \$5, list the recurring tasks, the owner, the cadence, and the tool used.

Area (\$5)	Recurring task	Owner	Cadence	Tool / where it lives
1 Sales	First call, needs discovery, site walk	_____	per lead	_____
1 Sales	Proposal build and presentation	_____	per opportunity	_____
2 Trade channel	Builder / designer outreach and follow-up	_____	weekly	_____
3 Design	System design, equipment list, price book upkeep	_____	per project	_____
3 Design	Programming and commissioning	_____	per project	_____
4 Delivery	Subcontractor sourcing and scheduling	_____	weekly	_____
4 Delivery	Site QA, punch list, client walkthrough	_____	per project	_____
5 Procurement	Dealer accounts, POs, RMA, stock	_____	weekly	_____
6 Marketing	Website, SEO, GBP, reviews, content, photo	_____	weekly	_____
7 Finance	Invoicing, collections, bookkeeping, reporting	_____	weekly / monthly	_____
8 Compliance	Licensing route, permits, insurance, W-9 / COI files	_____	monthly	_____
9 Client care	Support intake, service visits, LUMA Care renewals	_____	ongoing	_____

A.2 Escalation. Client complaint → area Lead within _____ hours → both Partners within _____ hours if unresolved or if the amount at risk exceeds \$_____. Anything touching safety, licensing, or a written client complaint goes to both Partners immediately.

A.3 Internal billable rates (charged to projects as direct cost, not profit share): design / engineering \$_____/h · programming and commissioning \$_____/h · field labour \$_____/h · service call, member \$_____/h · service call, non-member \$_____/h · travel beyond _____ miles \$_____/h or \$_____/mile. Rates reviewed at the monthly review.

A.4 Standard commercial terms (fill in once, then use everywhere): deposit _____ % · progress payment _____ % · final _____ % · payment terms net _____ · change-order minimum \$_____. labour warranty _____ months · manufacturer warranty pass-through _____ · minimum gross margin _____ %.

Annex B — Contribution ledger, share confirmation and valuation

B.1 Time log (weekly, shared sheet — the primary contribution record during the trial).

Week ending	Partner A hours	Partner B hours	Main work delivered	Notes

B.2 Cash log (every contribution and reimbursable expense, with receipt).

Date	Partner	Amount	Purpose	Type: capital / loan / reimbursable	Approved by
		\$			

B.3 Share confirmation at the final review. Inputs considered, in this order: (1) hours logged in B.1 against the commitment in §6; (2) cash in B.2 net of repayments; (3) delivered results against the KPIs in §10 and the milestones in Annex C; (4) ownership of a critical function that the Project cannot operate without. Any adjustment to §4 requires both signatures and is recorded as an addendum. Default if the Partners cannot agree on an adjustment: the shares in §4 stand unchanged.

B.4 Conversion of cash into share (per §8b): \$_____ per 1 %, valid until _____, applying only to cash actually received in the working fund and only up to a maximum of _____ % transferred in total.

B.5 Valuation method for a buy-out or a third-party entry (§13, §17). Agreed default: the greater of (a) _____ × trailing twelve-month revenue plus _____ × annualized LUMA Care recurring revenue, minus debt, plus working capital; or (b) _____ × trailing twelve-month owner earnings (profit before distributions, normalized for market-rate labour); or (c) net asset value. Payment terms for a buy-out: _____ % at closing, balance over _____ months at _____ % interest. If the Partners disagree, each names an appraiser and the two appraisers name a third, whose determination is used; cost shared per §4.

B.6 Improvement credits (§14). A documented improvement with a measured effect may be credited here — description, metric moved, measured effect, credit agreed by both Partners.

Annex C — 90-day action plan and KPI dashboard

C.1 Days 1–30 — foundation. Owner and due date for each: entity formed on Sunbiz and EIN obtained ____ ; business bank account and bookkeeping opened ____ ; general liability (and workers' comp if required) quoted and bound ____ ; **Florida licensing route decided and started** ____ ; sales-tax registration ____ ; shared drive, CRM and shared calendar live ____ ; price book v1 with margin floor ____ ; proposal, contract and change-order templates ____ ; dealer / distributor account applications filed (Lutron, Ubiquiti, Somfy, Sonos, distribution) ____ ; website live with tracking, Google Business Profile published ____ ; phone, email and shared inbox routed ____ ; one written subcontractor agreement plus W-9 and certificate of insurance on file ____ .

C.2 Days 31–60 — first demand. Target lists built: ____ builders, ____ designers/architects, ____ realtors, with ____ contacts per week each; ____ trade meetings held; first ____ proposals issued; one pilot project signed and started; demo kit or demo wall assembled for \$____ or less; ____ reviews collected; case-study photography of the pilot booked; LUMA Care offer priced and scripted.

C.3 Days 61–90 — proof and repeatability. Pilot delivered, commissioned and photographed; client walkthrough and written testimonial; unit economics compared to plan (quoted vs realized gross margin, hours per project vs estimate); the delivery process written down as a checklist; ____ signed trade partners; pipeline of \$____ ; decision documented on what to standardize, automate, outsource or hire next (§14).

C.4 KPI dashboard — reviewed monthly, one number per cell, plan vs actual.

Metric	Plan	Aug	Sep	Oct	Nov	Dec
Qualified leads						
Proposals issued / \$ value						
Projects signed / \$ value						
Revenue recognized						
Realized gross margin %						
LUMA Care members / MRR						
Cash in working fund						
Partner A / B hours logged						

Annex D — Disclosures, contacts and asset register

D.1 Contacts. Partner A: phone ____ · email ____ · messenger ____ . Partner B: phone ____ · email ____ · messenger ____ . Preferred channel for decisions that must be in writing: ____ . Shared inboxes and accounts, with who holds credentials: ____ .

D.2 Pre-existing activities and conflicts (excluded from §15): Partner A _____ ; Partner B _____ . Each Partner confirms nothing here prevents them from participating in the Project, including any current employment, non-compete, visa or work-authorization limitation: Partner A_____, Partner B _____ .

D.3 Pre-existing intellectual property licensed to the Project (owner keeps ownership; free licence while cooperating): _____ .

D.4 Asset register and custody. For each asset — owner of record during the trial, and who keeps it if the trial ends: brand and marks ____ ; domain and DNS ____ ; website repository and hosting ____ ; Google Business Profile ____ ; CRM and client database ____ ; phone number ____ ; email domain ____ ; social accounts ____ ; price book and templates ____ ; photography and case-study material ____ ; demo kit and tools ____ ; vendor and dealer accounts ____ .

D.5 Reimbursable personal costs, if any (§7): _____ , capped at \$_____ per month per Partner.

D.6 Open items to resolve before the definitive agreement. _____ .

This Memorandum is a working document for the Partners' own use during a trial period. It is not legal, tax or accounting advice. Have a Florida attorney and a CPA review the definitive Operating Agreement, the client contract template, and the subcontractor agreements before relying on them commercially.